

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JAMES McDOUGAL,

Plaintiff,

- against -

THE CITY OF NEW YORK and
P.O. HERNANDEZ,

Defendants.
-----X

Index No.

Plaintiff designates
Kings County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

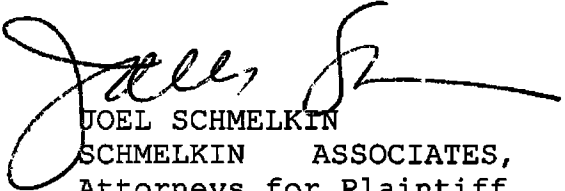
Plaintiff resides at:
147-36 94th Ave. (#25-A)
Jamaica, NY 11435

County of Queens

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 25, 2022


JOEL SCHMELKIN
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff
JAMES McDOUGAL
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, N.Y. 10007
P.O. Hernandez, c/o 94th Precinct, 100 Meserole Ave, Brooklyn, NY 11222

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
JAMES McDOUGAL,

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
P.O. HERNANDEZ,

Defendants.

-----X

Plaintiff, **JAMES McDOUGAL**, complaining of the
defendants, by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby
sets forth and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT/IDENTIFICATION OF PARTIES

1. That, at all times hereinafter mentioned, and on
February 13, 2021, the plaintiff, **JAMES McDOUGAL**, was and still
is a resident of the County of Queens, City and State of New
York.

2. That, at all times hereinafter mentioned, and on
February 13, 2021, the defendant, **THE CITY OF NEW YORK**,
(hereinafter referred to as "**THE CITY**") was and still is a
domestic municipal corporation, duly organized and existing under
and by virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
February 13, 2021, the defendant, **P.O. HERNANDEZ**, (hereinafter
referred to as "**HERNANDEZ**"), was and still is a resident of the

City and State of New York.

4. At all times hereinafter mentioned and on January 13, 2021, the defendant **HERNANDEZ** was a police officer, and/or other agent, servant, and/or employee of the defendant **THE CITY** and was working within the scope and course of his employment with the defendant, **THE CITY**.

5. That, the plaintiff, **JAMES McDOUGAL**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on April 27, 2021, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **JAMES McDOUGAL**, testified at an oral examination pursuant to the General Municipal Law on August 13, 2021; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

6. That the plaintiff, **JAMES McDOUGAL**, went to a store known as "Target," located at 445 Albee Square West, Brooklyn, in the County of Kings, City and State of New York, on February 13, 2021.

7. That the plaintiff, **JAMES McDOUGAL**, was on the aforementioned premises for purposes of picking up an item, which

he purchased at the aforementioned store.

8. That after picking up this item, the plaintiff, **JAMES McDOUGAL**, was followed to the cash register by Defendant Police Officer **HERNANDEZ** and/or another agent/servant and/or employee of the defendant and/or defendants.

9. That the aforementioned defendant Police Officer **HERNANDEZ**, and/or other agents, servants and/or employees of the defendant and/or defendants, had falsely accused the plaintiff, **JAMES McDOUGAL**, of taking an item without paying for it.

10. The aforementioned defendant, Police Officer **HERNANDEZ** had falsely summoned other individuals, believed to be security personnel of the aforementioned "Target store, and/or other agents, servants, and/or employees of the defendant and/or defendants, and thereafter had detained and searched the plaintiff concerning the items in his possession, and had placed the items on a scanner.

11. Thereafter, the plaintiff, **JAMES McDOUGAL**, after being held for an unjustified and unreasonable period of time, after being unreasonably detained, after being placed in fear of his safety, was finally permitted to leave the aforementioned "TARGET" store.

12. That on February 13, 2021, plaintiff, **JAMES McDOUGAL** was falsely imprisoned/detained, assaulted/battered and

had his civil rights violated at the aforementioned "Target" located at 445 Albee Square West in the County of Kings, City and State of New York.

13. That without probable cause, without reasonable cause and without justification, the plaintiff, **JAMES McDOUGAL** was falsely imprisoned/detained by the defendant **HERNANDEZ** and or other agents, servants, and/or employees of the defendant, **THE CITY**.

14. That the detainment/imprisonment took place at the "Target" where the plaintiff, **JAMES McDOUGAL** was held for a long and unreasonable period of time, without probable cause.

15. That the plaintiff, **JAMES McDOUGAL** was not given his "Miranda rights" and/or other rights afforded to him by the United States Constitution.

16. That the plaintiff, **JAMES McDOUGAL** was processed and/or otherwise detained, against his will.

17. That the plaintiff, **JAMES McDOUGAL** was at all times cognizant of his confinement, and did not consent to his confinement.

18. That the defendants had refused to question the plaintiff, **JAMES McDOUGAL** to allow him to explain that he was not guilty of any crime.

19. That the defendants owed a duty to the plaintiff, **JAMES McDOUGAL**, under his Constitutional rights and

had breached said duty; that as a result of the foregoing the defendants had violated and otherwise breached that duty; that as a direct and proximate result of that breach, the plaintiff, **JAMES McDOUGAL** was caused to sustain serious and severe personal injuries.

AS AND FOR A FIRST CAUSE OF ACTION
(Assault and Battery)

20. That, the plaintiff, **JAMES McDOUGAL** repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 19 with the same force and effect as if hereinafter more fully set forth at length herein.

21. That, on February 13, 2021, the plaintiff, **JAMES McDOUGAL**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

22. That, the plaintiff, **JAMES McDOUGAL**, was assaulted/battered without justification and without cause and without excuse.

23. That, the assault/battery took place on 445 Albee Square West, in the County of Kings, City and State of New York and other locations wherein the plaintiff, **JAMES McDOUGAL** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

24. That, at all times hereinafter mentioned and on

February 13, 2021, and for sometime prior thereto, defendant, **HERNANDEZ**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

25. That, the aforementioned assault and battery of the plaintiff, **JAMES McDOUGAL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

26. That, by reason of the foregoing, the plaintiff, **JAMES McDOUGAL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

27. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts, and under the doctrine of *respondeat superior*.

28. That, by reason of the foregoing, the plaintiff, **JAMES McDOUGAL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

29. That, the plaintiff, **JAMES McDOUGAL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 28 with the same force and effect as if hereinafter more fully set forth at length herein.

30. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

31. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

32. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **HERNANDEZ** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

33. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **HERNANDEZ**, who was employed by the defendant, **THE CITY**.

34. That, by reason of the foregoing, the plaintiff, **JAMES McDOUGAL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

35. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts, and under the doctrine of *respondeat superior*.

36. That, by reason of the foregoing, the plaintiff, **JAMES McDOUGAL** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

(False Arrest, detainment
False Imprisonment)

37. That the plaintiff, **JAMES McDOUGAL** , repeats, reiterates, and realleges, each and every allegation as set forth

in paragraphs 1 through 36 with the same force and effect as if hereinafter more fully set forth at length herein.

38. That, on February 13, 2021, the plaintiff, **JAMES McDOUGAL**, was caused to be falsely arrested/falsely detained and falsely imprisoned without probable cause.

39. That, the plaintiff, **JAMES McDOUGAL**, was arrested/detained without warrant.

40. That, the false arrest/false imprisonment, false detainment took place in 445 Albee Square West, in the County of Kings, City and State of New York and thereafter continuing at other locations wherein the plaintiff, **JAMES McDOUGAL** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

41. That, the aforementioned false arrest/false detainment and false imprisonment of the plaintiff, **JAMES McDOUGAL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

42. That, the aforementioned false arrest and false imprisonment of the plaintiff, **JAMES McDOUGAL**, was carried out by defendant, **HERNANDEZ**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

43. That, by reason of the foregoing, the plaintiff, **JAMES McDOUGAL**, was injured; was rendered sick, sore, lame and

disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

44. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts, and under the doctrine of *respondeat superior*.

45. That, by reason of the foregoing, the plaintiff, **JAMES McDOUGAL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

46. The plaintiff, **JAMES McDOUGAL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 45, with the same force and effect as if hereinafter more fully set forth at length herein.

47. That the plaintiff, **JAMES McDOUGAL** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested/falsely detained and imprisoned, assaulted and battered, excessive force was used

against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

48. That at all times hereinafter mentioned, the defendant, **HERNANDEZ** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

49. Defendant, **HERNANDEZ**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **HERNANDEZ** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

50. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **JAMES McDOUGAL** of the following rights, privileges and immunities secured to him by the Constitution of

the United States and of the State of New York: The right of plaintiff, **JAMES McDOUGAL** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **JAMES McDOUGAL** , to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **JAMES McDOUGAL** , not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

51. That the deprivation of plaintiff's Constitutionalrights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

52. That the deprivation of plaintiff's Constitutionalrights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

53. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

54. That the deprivation of plaintiff, **JAMES McDOUGAL's**

Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

55. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

56. That the detaining of plaintiff, **JAMES McDOUGAL** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

57. That the deprivation of plaintiff, **JAMES McDOUGAL's** Constitutional rights was the result of the defendant, **HERNANDEZ's** arrest of the plaintiff **JAMES McDOUGAL** without probable cause.

58. That the deprivation of plaintiff **JAMES McDOUGAL's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

59. That the deprivation of plaintiff, **JAMES McDOUGAL's** Constitutional rights was the result of the defendant, **HERNANDEZ's** use of excessive force.

60. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **JAMES McDOUGAL** .

61. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not

limited to the plaintiff's false arrest, false detainment, false imprisonment, assault and battery, of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **JAMES McDOUGAL** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

62. That, by reason of the foregoing, the plaintiff **JAMES McDOUGAL** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

63. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

64. That, by reason of the foregoing, the plaintiff, **JAMES McDOUGAL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

(Negligent Infliction
of Emotional Distress)

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **JAMES McDOUGAL**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

67. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

69. Defendant, **HERNANDEZ**, was at all times an agent, servant, and/or employee acting within the scope of his employment by **THE CITY**, which are therefore responsible for their conduct.

70. **THE CITY**, as the employer of the police officer defendant, P.O. **HERNANDEZ** is responsible for their wrongdoing under the doctrine *respondeat superior*.

71. That, by reason of the foregoing, the plaintiff, **JAMES McDOUGAL**, was injured; was rendered sick, sore, lame and disabled; was, and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

72. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

73. That, by reason of the foregoing, the plaintiff, **JAMES McDOUGAL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION

(Intentional Infliction
of Emotional Distress)

74. That the plaintiff, **JAMES McDOUGAL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 73 with the same force and effect as if hereinafter more fully set forth at length herein.

75. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **JAMES McDOUGAL**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

76. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

79. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

80. That, by reason of the foregoing, the plaintiff, **JAMES McDOUGAL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment

and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

81. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

82. That, by reason of the foregoing, the plaintiff, **JAMES McDOUGAL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN SEVENTH CAUSE OF ACTION
(Failure to Intervene)

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. That the defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

85. Defendants failed to intervene to prevent the unlawful conduct described herein.

86. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

87. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

89. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. That, by reason of the foregoing, the plaintiff, **JAMES McDOUGAL**, was injured; was rendered sick, sore, lame and disabled; and/or will be was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

91 That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

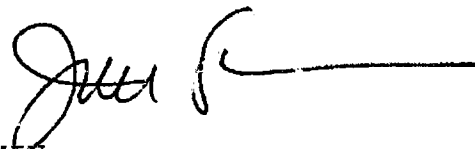
92 As a result of the aforementioned conduct of

defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

93. That, by reason of the foregoing, the plaintiff, **JAMES McDOUGAL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **JAMES McDOUGAL**, demands judgment against the defendants, on the First, Second, Third, Fourth Fifth, Sixth, and Seventh causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
April 25, 2022

Yours, etc. 

JOEL SCHMELKIN
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
JAMES McDOUGAL
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

ATTORNEYS VERIFICATION

JOEL SCHMELKIN, an attorney admitted to practice law in the State of New York, affirms the following under the penalties of perjury:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff for the reason that plaintiff does not reside within the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C..

Dated: New York, New York

April 21st 2022



JOEL SCHMELKIN

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

JAMES McDOUGAL,

Plaintiff,

-against-

THE CITY OF NEW YORK, and P.O. HERNANDEZ,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

James McDougal

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

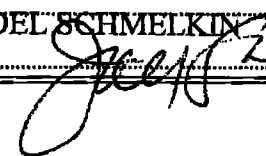
Dated:

4/25/22

Signature

JOEL SCHMELKIN

Print Signer's Name



Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. _____, one of the judges of the within-named Court,
at _____
on _____, at _____ M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

23 of 23

Office and Post Office Address, Telephone
30 VESEY STREET, 4TH FLOOR